

Ekta Malviya v. U.P. Power Corporation Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 18 February 2025 · 2025:AHC:23523-DB · WRIT - C No. - 4566 of 2025 · **Writ disposed; respondent no. 3 to decide the billing claim under Clause 6.5 within six weeks.**

HEADNOTE

Where a consumer's objection to a bill is already pending before the concerned authority, the High Court will not examine the bill on merits. It disposes of the writ by directing that authority to decide the claim in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005, within six weeks of a certified copy.

FACTUAL SUMMARY

Ekta Malviya filed a writ petition in the Allahabad High Court against U.P. Power Corporation Ltd. and others, challenging a bill raised against her. At the hearing, her claim in respect of that bill was already pending before the concerned authority (respondent no. 3). She sought judicial intervention on the bill rather than awaiting that authority's decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection pending before authority

HOLDING

Where a consumer's claim against a bill is already pending before the concerned authority, the writ court will not decide the bill on merits and will dispose of the petition by directing that authority to determine the claim in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005, within a stipulated period. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Where a consumer's objection to a bill is already pending before the concerned authority, the High Court will not examine the bill on merits. It disposes of the writ by directing that authority to decide the claim in accordance with Clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL RAISED AGAINST THE PETITIONER

Left to respondent no. 3 to decide under Clause 6.5. ¶ 1